

**Procedural History:**

This case was initiated in June 2018 by the Plaintiff Law Office's complaint against Defendants Alai and Nabili alleging failure to pay attorney fees in the amount of approximately \$30,000.00. Alai and Nabili cross-complained alleging various breaches of duty by the Law Office and Plummer related to their representation of Defendants in several lawsuits.

Both sides have aggressively litigated the dispute, resulting in an extraordinary number of filings and hearings. As of 6/26/26, the Court's case management system reflects over 2,000 docket entries including more than 125 minute orders. The Court has held at least 50 hearings on motions, not including ex parte applications. The parties' dispute now includes two other lawsuits, Orange County Case Nos. 2020-01141868 and 2025-01469232.

The Court has repeatedly admonished the parties for engaging in harassment and delay tactics rather than litigating the merits of their case. Both sides have been repeatedly warned about filing documents which violate the Code of Civil Procedure and/or Rules of Court.

The Court partially granted Plaintiff/Cross-Defendants' motion to deem Alai a vexatious litigant as to Alai's claims against former Cross-Defendant Jocelyn Plummer only. (2/13/24 Minute Order.) The Court denied Alai's motion to deem Plaintiff a vexatious litigant because it found the Plaintiff Law Office is a corporate entity not subject to the vexatious litigant statute. (11/25/25 Minute Order.)

On 7/10/23, Movants filed a prior "Motion for Summary Adjudication" regarding the FACC, which was initially set for hearing on 3/26/24 then continued to 4/16/24. Although labeled a motion for summary adjudication, the motion sought adjudication in Movants' favor on "each of the 7 causes of action" in the FACC, as well as a single cause of action in the Complaint. Therefore, the prior motion was a motion for summary judgment as to the entire FACC, not merely summary adjudication.

In April 2024, the Court issued a tentative ruling to deny the prior motion, held a hearing, and took the prior motion under submission. However, the Court of Appeal stayed proceedings in the trial court on 4/24/24 and this Court issued a minute order on 4/29/24 stating the prior motion was no longer under submission and staying its ruling on the motions. The Court never issued a final order on the merits of the prior motion.

Trial is set for 9/18/26.

**Movants Failed to Obtain Leave to File Second Dispositive Motion:**

Rather than requesting a new hearing date or asking the Court to resume its under submission consideration of the 7/10/23 motion, Movants filed a new motion for summary judgment/adjudication of the FACC containing substantially new and different arguments on 2/19/26.

Code of Civil Procedure section 437c(a), amended effective 1/1/25, states in part:

“(4) A party shall not bring more than one motion for summary judgment against an adverse party to the action or proceeding. This limitation does not apply to motions for summary adjudication. (5) Notwithstanding any other provision of this section, on motion or application of any party and a showing of good cause, the court may grant leave for the moving party to bring an additional motion for summary judgment. The moving party shall serve the notice and supporting papers for any such additional motion in accordance with paragraph (2) of subdivision (a).”

Here, Movants did not file a motion or application seeking leave to file a second motion for summary judgment regarding the FACC. Rather, they obtained the benefit of the Court’s prior tentative ruling and revised their motion, filing a second motion without leave of Court. This caused a substantial additional burden to opposing parties and the Court. Moreover, it allowed Movants an unfair opportunity to revise their motion after the Court already held argument and issued a tentative ruling denying the motion.

**Movants’ Improper Service of Moving Papers:**

Code of Civil Procedure section 437c(a)(2) states in part, “Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.”

Cross-Complainant Alai’s new counsel filed a notice of association on 1/12/26 stating their email addresses were jbohm@bohmwildish.com and efile@bohmwildish.com.

On 2/19/26, Plummer’s office served the present motion via OneLegal eservice to [eserve@bohmwildish.com](mailto:eserve@bohmwildish.com) as well as to Alai and Nabili’s personal emails. (Reply, Ex. A – OneLegal receipt.) Although the proof of service attached to the motion identifies the Bohm Wildish “efile” email address, there is no service receipt showing the document was sent to that email address.

Alai’s counsel was aware of the motion because Plummer’s office emailed a Word version of the separate statement, and Alai’s counsel downloaded the documents from the Court website. Alai’s

counsel declares that no one in their office received eservice of the moving papers and exhibits – only the Word separate statement.

**Movants’ Notice and Separate Statement are Vague and Violate the Rules of Court:**

The California Rules of Court, Rule 3.1350(b) states,

“If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.”

“(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify:

(A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and

(B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.” (Rule 3.1350(d)(1).)

As the Court noted in its April 2024 tentative ruling regarding Movants’ prior motion for summary judgment/adjudication, Movants’ separate statement should be in “numerical sequence.” (Rule 3.1350(d)(3).)

Code of Civil Procedure section 437c(f)(1) states the grounds upon which a party may move for summary adjudication:

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.”

Here, the notice of motion states the following:

“This motion will be based on the grounds that the Statute of Limitations expired on all claims in the Cross-Complaint before it was filed. Additionally, each [sic] the causes of action in the First Amended Complaint is defective because they all fail to identify any damages and also lack other requirements. (Specifically, Cross-Complainants claimed they had suffered damages on or about March

2017 [EXHIBIT Q – First Amended Cross-Complaint; ¶38, ¶39, ¶40, ¶41, ¶49, ¶51, ¶52, ¶53, ¶56, ¶57, ¶76, ¶79, ¶80, ¶81, ¶82, ¶83, ¶84, ¶85, ¶87, ¶88, ¶89, ¶90, ¶92, ¶93, ¶94, ¶95, ¶96, ¶97, ¶98, ¶101, ¶102, ¶105, ¶106, ¶107 and ¶108], but did not file the subject Cross-Complaint until November 18, 2018 [EXHIBIT P – Cross-Complaint], which is well past the 1-year Statute of Limitations provided in Code of Civil Procedure §340.6.” (Motion, p. 2.)

Movants’ notice asserts the entire FACC is barred by the statute of limitations. However, it is unclear whether Movants seek summary adjudication of any other issues, and if so what specific issues are being raised. Movants assert “all” causes of action “fail to identify any damages” “lack other requirements.” “Specifically,” the FACC alleges damages “suffered...on or about March 2017...but did not file the [FACC] until November 18, 2018...which is well past” the statute of limitations. Therefore, it is unclear whether Movants contend the FACC fails to allege damages because the damages claim is untimely or on some other grounds. It is also unclear if Movants contend the other claims generally lack merit, fail to address an issue of duty, or if an affirmative defense bars the claim. Such vagueness is highly prejudicial for the Court’s ability to analyze the motion and for Alai and Nabili’s ability to respond to it.

Movants’ separate statement includes separate headings for the statute of limitations and each cause of action. It does not reflect the notice of motion “verbatim” as required by Rule 3.1350(b). Moreover, the separate statement re-starts the numbering of facts for each issue, rendering it difficult for the Court and opposing parties to determine which facts are being cited in support of Movants’ arguments in the motion. Finally, the motion largely cites the underlying evidence rather than the undisputed facts. Combined, these issues make it difficult for Alai and Nabili to respond to the motion by pointing to disputed facts in opposition.

#### **The Motion’s Formatting Violates the Rules of Court:**

The Court has previously admonished the parties about improper font size and page formatting issues. (12/2/25 and 12/30/25 Minute Orders.) In this and the related lawsuits before this Court, both parties have previously violated these rules in an apparent effort to circumvent page limits.

The present motion and reply violate the California Rules of Court (hereafter “Rules”) including Rule 2.108. A motion complying with Rule 2.108 (1.5 or double-spaced with line numbers aligned with the text) should have no more than 28 numbered lines per page. Here, the motion includes 28 line numbers along the sides of each page, but the lines of text do not align with the line numbers such that there are actually more than 30 lines per page. For example, page 7 of the motion has 31 lines of text.

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|  | <p>The motion includes 16 pages of argument, which is within the 20-page limit for a summary judgment motion. (Rule 3.1113(d).) However, Mr. Plummer's use of improper line spacing makes it difficult for the Court to determine whether the page limit would have been violated if the line spacing was appropriate.</p> <p>The Court may impose sanctions for violation of the Rules of Court. (Rule 2.30(b).) This is the final warning to Mr. Plummer to strictly comply with all formatting requirements of the Rules of Court, at risk of incurring sanctions and/or having his nonconforming filings disregarded by the Court.</p> <p>For all of the foregoing reasons, the motion is denied.</p> |
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